

Act.	Section.	Marginal Note.	Modification.
Union of Benefices Act, 1860— <i>cont.</i>	28	Appropriation of seats in church of united parish.	After "union of benefices" there shall be inserted "in which the parishes shall be united."
	29	Property to be sold shall vest in Ecclesiastical Commissioners and church of united parish in incumbent.	
	30	Disunion of united benefices, 1 & 2 Vict. c. 106.	
Union of Benefices Acts Amendment Act, 1871.	4	Site of disused church to be preserved. Burials.	

CHAPTER 99.

An Act to make further provision for the better housing of the people, to authorise the acquisition of land for the development of garden cities or for the purposes of town-planning schemes, and to make further provision with respect to the borrowing powers of public authorities and bodies and with respect to the securities issued by them. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Subject to the provisions of this Act, the Minister of Health (in this Act referred to as "the Minister") may, in accordance with schemes made by him with the approval of the Treasury, make grants out of moneys provided by Parliament to any persons or bodies of persons constructing houses. Provision for payment of money to persons constructing

(2) Grants under this section shall be made only in respect of houses—

- (a) which comply with the conditions prescribed by the Minister and are in material accordance with the conditions as to the number of houses per acre and the standards of structural stability and sanitation approved by the Minister in the case of any scheme

9 & 10 Geo.
c. 35.

- submitted by a local authority under section one of the Housing, Town Planning, &c. Act, 1919 ;
- (b) which are certified by the local authority of the area in which the houses are situate, or on appeal by the Minister, to have been completed in a proper and workmanlike manner ;
- (c) the construction of which is begun within twelve months after the passing of this Act and which are completed within that period or such further period not exceeding four months as the Minister may in any special case allow :

Provided that a proportionate reduction of the grant shall be made in respect of any house which is not completed within the said period of twelve months unless the Minister is satisfied that the failure to complete the house within that period was due to circumstances over which the person constructing the house had no control.

Any person aggrieved by the refusal or neglect of a local authority to grant a certificate under this subsection in respect of any house may appeal to the Minister, and, if the Minister is satisfied that the house has been completed in a proper and workmanlike manner, he shall certify accordingly.

(3) In so far as the provisions of any building byelaws are inconsistent with the conditions prescribed by the Minister under this section, those provisions shall not apply in respect of any houses which comply with those conditions :

Provided that, as regards the administrative county of London, the Minister shall not prescribe any conditions inconsistent with the provisions of any building byelaws in force in the county except after consultation with the London County Council on the general question of the relaxation of such provisions in connexion with the construction of Houses under this Act.

In this Act the expression " building byelaws " has the same meaning as in Part I. of the Housing, Town Planning, &c. Act, 1919.

Aggregate
amount of
grants.

2.—(1) The aggregate amount of the grants to be made for the purposes of the preceding section of this Act shall not exceed fifteen million pounds.

(2) A grant shall not be made under the preceding section of this Act in respect of any house in respect of which any payment out of moneys provided by Parliament may be made under section seven or section nineteen of the Housing, Town Planning, &c. Act, 1919, and a payment shall not be made under those sections in respect of any house in respect of which a grant has been made under the preceding section of this Act.

3.—(1) Any expenses incurred by the Minister under section sixteen of the Housing, Town Planning, &c. Act, 1919, in connexion with the conversion of buildings into separate tenements shall, subject as hereinafter provided, be paid out of moneys provided by Parliament :

Provision as to expenses under s. 16 of 9 & 10 Geo. 5. c. 35.

Provided that such part of any such expenses as would have been borne by the local authority if they had been expenses incurred in carrying out a scheme to which section seven of the said Act applies shall be payable by that authority and shall be recoverable from that authority as a debt due to the Crown, and the certificate of the Minister as to the part of the expenses to be borne by the local authority shall be conclusive.

(2) The provision of money for the payment of any amounts payable by a local authority under this section shall be a purpose for which the authority may borrow under Part III. of the Housing of the Working Classes Act, 1890.

53 & 54 Vict. c. 70.

(3) The Minister may make Orders containing such provisions with regard to the vesting in the local authority of any buildings converted into separate tenements under the provisions of the said section sixteen and such consequential and supplemental provisions as the Minister may think necessary, and any order so made shall be binding on the local authority.

4. Section seven of the Housing, Town Planning, &c. Act, 1919 (which provides for the recoupment out of moneys provided by Parliament of losses incurred in connexion with certain schemes), and section nineteen of that Act (which provides for the contributions out of moneys provided by Parliament towards costs incurred by public utility societies and housing trusts) shall respectively have effect as though for the words "equivalent to thirty per centum of the annual loan charges," where they occur in each of those sections, there were substituted the words "equivalent during the period ending on " the thirty-first day of March nineteen hundred and twenty-seven, to fifty per centum and thereafter to thirty per centum " of the annual loan charges."

Amendment of s. 7 and s. 19 of 9 & 10 Geo. 5. c. 35. with respect to amount of annual payments.

5.—(1) Where it appears to a local authority that the provision of dwelling accommodation for their area is or is likely to be delayed by a deficiency of labour or materials arising out of the employment of labour or material in the construction within their area of any works or buildings (other than works or buildings authorised or required by, under, or in pursuance of any Act of Parliament), and that the construction of those works or buildings is in the circumstances of the case of less public importance for the time being than the provision of dwelling accommodation, the authority may by order prohibit for such time and on such terms and subject to such conditions as the Minister may from time to time prescribe, and either in whole or in part, the construction of those works or buildings.

Prohibition of building operations which interfere with provision of dwelling-houses.

(2) Any person aggrieved by an order made by a local authority under this section may, subject to rules of procedure to be made by the Minister, appeal to the Minister, and on any such appeal the Minister shall refer all such cases to a standing tribunal of appeal, consisting of five persons, to be appointed by the Minister, which shall have power either to annul the order or to make such order in the matter as the local authority could have made, and the decision of the tribunal of appeal in the matter shall be final and not subject to appeal to or review by any court.

(3) Where any appeal against an order made under this section is not finally determined within fourteen days after the date on which notice of appeal against the order was given, the operation of the order shall be suspended as from the expiration of the said fourteen days until the appeal has been finally determined.

(4) If any person acts in contravention of or fails to comply with any of the provisions of an order made under this section, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, and, if the offence is a continuing offence, to a fine not exceeding fifty pounds for each day during which the offence continues, and, where the person guilty of an offence under this section is a company, every director and officer of the company shall be guilty of the like offence unless he proves that the act constituting the offence took place without his consent or connivance.

(5) In any action or proceedings for breach of a contract to construct any works or buildings, it shall be a good defence to the action or proceedings to prove that the non-fulfilment of the contract was due to compliance with an order made under this section.

(6) In this section the expression "construction of any works or buildings" includes the making of alterations or additions to existing works or buildings.

(7) Any rules of procedure made by the Minister under this section shall be laid before both Houses of Parliament as soon as may be after they are made.

Prohibition on
demolition of
dwelling-
houses.

6.—(1) If any person at any time after the third day of December, nineteen hundred and nineteen, without the permission in writing of the local authority within whose area the house is situate, demolishes, in whole or in part, or uses otherwise than as a dwelling-house any house which was at that date in the opinion of the local authority reasonably fit or reasonably capable without reconstruction of being rendered fit for human habitation, he shall be liable on summary conviction in respect of each house demolished or so used to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such imprisonment and fine, and, where

the person guilty of an offence under this section is a company, every director and officer of the company shall be guilty of the like offence unless he proves that the act constituting the offence took place without his consent or connivance

(2) Any person to whom permission to demolish a house has been refused by a local authority under this section, may appeal to the Minister on the ground that the house is not capable without reconstruction of being rendered fit for human habitation, and any such appeal shall be dealt with in the same manner as an appeal under subsection (2) of the preceding section of this Act.

(3) Notwithstanding anything in this section, the permission of the local authority shall not be required in the case of any house the demolition of which is required or authorised by, under, or in pursuance of any Act of Parliament, or which is used otherwise than as a dwelling-house for any statutory purposes or which was occupied and used otherwise than as a dwelling-house before the third day of December, nineteen hundred and nineteen.

In this section the expression "dwelling-house" means a building constructed or adapted to be used wholly or principally for human habitation.

7.—(1) A local authority (including a county council) may, with the consent of the Minister, borrow any sums which they have power to borrow for the purposes of the Housing Acts, 1890 to 1919, by the issue of bonds (in this Act referred to as "local bonds") in accordance with the provisions of this Act.

Powers of borrowing for purpose of Housing Acts.

(2) A county council may lend to any local authority within their area any money which that authority have power to borrow for the purposes of the Housing Acts, 1890 to 1919, and may, with the sanction of the Minister and irrespective of any limit of borrowing, raise the money required for the purpose either by the issue of local bonds under this section or by a loan subject to the like conditions and in the like manner as any other loan raised for the purpose of their powers and duties, and subject in either case to any conditions which the Minister may by general or special order impose.

(3) The provisions set out in the Schedule to this Act shall have effect with respect to local bonds.

(4) Where on an application made by two or more local authorities the Minister is satisfied that it is expedient that those authorities should have power to make a joint issue of local bonds, the Minister may by order make such provision as appears to him necessary for the purpose, and any such order shall provide for the securing of the bonds issued upon the joint rates, property and revenues of the authorities.

The provisions of any such order shall have effect as if they were contained in a Provisional Order made under section two hundred and seventy-nine of the Public Health Act, 1875.

38 & 39 Vict.
c. 55.

(5) Any local authority by whom any local bonds have been issued may, without the consent of the Minister, borrow for the purpose of redeeming those bonds.

Subsection (2)
of s. 1 of
6 & 7 Geo. 5.
c. 69. to be
perpetual.

8. Subsection (2) of section one of the Public Authorities and Bodies (Loans) Act, 1916 (which gives power temporarily to certain local authorities to borrow money by means of the issue of securities to bearer and whether within or without the United Kingdom), shall be a permanent enactment, and accordingly the words "during the continuation of the present war and a period of six months thereafter" in that subsection shall be repealed.

Power of
trustees to
invest in
certain
securities
issued by local
authorities.
56 & 57 Vict.
c. 53.

9. Section one of the Trustee Act, 1893 (which specifies the securities in which trust funds may be invested), shall have effect as though there were included therein local bonds issued under this Act and mortgages of any fund or rate granted after the passing of this Act under the authority of any Act or Provisional Order by a local authority (including a county council) which is authorised to issue local bonds under this Act.

Acquisition of
land for
purpose of
garden cities
or town-
planning
schemes.

10.—(1) Where the Minister is satisfied that any local authority (including a county council) or two or more local authorities jointly, or any authorised association, are prepared to purchase and develop any land as a garden city (including a garden suburb or a garden village), or any land in regard to which a town-planning scheme may be made for the purpose of such a scheme for the area in which the land is situate, in accordance with a scheme approved by the Minister, and have funds available for the purpose, he may, with the consent of the Treasury and after consultation with the Board of Trade, the Board of Agriculture and Fisheries, and the Minister of Transport, acquire that land on behalf of the authority or association either by compulsion or by agreement in any case in which it appears to him necessary or expedient so to do for the purpose of securing the development of the land as aforesaid, and may do all such things as may be necessary to vest the land so acquired in the local authority or association.

(2) The provisions of the Housing Acts, 1890 to 1919, relating to the powers of a local authority to acquire land for the purposes of Part III. of the Housing of the Working Classes Act, 1890, shall apply for the purpose of the acquisition of land by the Minister under this section, and the Minister in exercising his powers of acquiring land under this section shall be subject to the same conditions as are applicable to the acquisition of land under the Housing Acts, 1890 to 1919, by a local authority:

Provided that, in the case of an order for the compulsory acquisition of land on behalf of an authorised association, the

order shall be laid before each House of Parliament and shall not be confirmed by the Minister unless and until both Houses by resolution have approved the order, nor, if any modifications are agreed to by both Houses, otherwise than as so modified.

(3) A local authority shall have power to acquire land for the purposes of a scheme approved by the Minister under this section, and to develop any land so acquired in accordance with the scheme, and shall have power to borrow, as for the purposes of the Housing Acts, 1890 to 1919, any money required for the purpose of so acquiring or developing any land.

(4) In this section "authorised association" means any society, company or body of persons approved by the Minister whose objects include the promotion, formation, or management of garden cities (including garden suburbs and garden villages), and the erection, improvement or management of buildings for the working classes and others, which does not trade for profit or whose constitution forbids payment of any interest or dividend at a higher rate than six per centum per annum.

11. In this Act the expression "local authority" means the local authority within the meaning of Part III. of the Housing of the Working Classes Act, 1890:

Meaning of
local authority,
53 & 54 Vict.
c. 70.

Provided that for the purpose of the application of the provisions of this Act (other than those relating to expenses under section sixteen of the Housing, Town Planning, &c. Act, 1919) to the county of London the London County Council shall be the local authority to the exclusion of any other authority, and that in the city of London the London County Council shall be the local authority for the purpose of the certificate as to the completion of houses to be given under the provisions of this Act relating to the payment of money to persons constructing houses.

12. For the purpose of securing the proper execution of this Act in the administrative county of London, the London County Council shall have the power to require a district surveyor under the London Building Act, 1894, to perform within his district such duties as the Council think necessary for that purpose, and the Council may pay to a district surveyor such remuneration as they may determine in respect of any duties performed by him in pursuance of this section.

Execution of
Act in county
of London.

57 & 58 Vict.
c. ccxiii.

13.—(1) This Act shall apply to Scotland subject to the following modifications:—

Application to
Scotland.

- (a) References to the Minister of Health shall be construed as references to the Scottish Board of Health;
- (b) A reference to the Board of Agriculture and Fisheries shall be construed as a reference to the Board of Agriculture for Scotland;

9 & 10 Geo. 5.
c. 60.

(c) References to section one, section seven and section nineteen of the Housing, Town Planning, &c. Act, 1919, shall be construed as references to section one, section five and section sixteen, respectively, of the Housing, Town Planning, &c. (Scotland) Act, 1919 ;

(d) References to the Housing Acts, 1890 to 1919, shall be construed as references to the Housing (Scotland) Acts, 1890 to 1919 ;

(e) A reference to building byelaws shall be construed as a reference to building regulations as defined by section thirty-one of the Housing, Town Planning, &c. (Scotland) Act, 1919 ;

(f) A reference to a Provisional Order made under section two hundred and seventy-nine of the Public Health Act, 1875, shall be construed as a reference to an Order made under subsection (3) of section sixty-four of the National Insurance Act, 1911.

1 & 2 Geo. 5.
c. 55.

(2) Section sixteen of the Housing, Town Planning, &c. Act, 1919, shall apply to Scotland as if it had been enacted in Part I. of the Housing, Town Planning, &c. (Scotland) Act, 1919, with the substitution of the Scottish Board of Health for the Local Government Board, and references in this Act to the said section sixteen shall be construed as references to that section as so applied.

27 & 28 Vict.
c. 114.

(3) Section eighteen of the Improvement of Land Act, 1864, shall not have effect in the case of landowners in Scotland making applications for loans under that Act for the construction or reconstruction of houses for the working classes.

(4) The section of this Act relating to power of trustees to invest in certain securities issued by local authorities shall not apply, and in lieu thereof—

Local bonds issued under this Act shall be bonds within the meaning of paragraph (b) of section three of the Trusts (Scotland) Act, 1898.

61 & 62 Vict.
c. 42.

Application to
Ireland.

14. This Act, in its application to Ireland, shall have effect with the following modifications, namely :—

(1) References to the Minister of Health or to the Minister shall be construed as references to the Local Government Board for Ireland :

(2) References to the Housing Acts, 1890 to 1919, shall be construed as references to the Housing of the Working Classes (Ireland) Acts, 1890 to 1919, references to the Housing, Town Planning, &c. Act, 1919, shall be construed as references to the Housing (Ireland) Act, 1919, and references to section seven and to section nineteen of the first-mentioned Act shall respectively be construed as references to

9 & 10 Geo. 5.
c. 45.

section five and to section fifteen of the last-mentioned Act :

- (3) References to the Public Health Act, 1875, shall be construed as references to the Public Health (Ireland) Act, 1878, and references to section two hundred and seventy-nine of the first-mentioned Act shall be construed as references to section twelve of the last-mentioned Act : 41 & 42 Vict.
c. 52.
- (4) The reference to the Board of Agriculture and Fisheries shall not apply :
- (5) Section sixteen of the Housing, Town Planning, &c. Act, 1919, shall apply to Ireland as if it had been enacted in Part I. of the Housing (Ireland) Act, 1919, with the substitution of "the Local Government Board for Ireland" for "the Local Government Board," and references in this Act to the said section sixteen shall be construed as references to that section as so applied.

15.—(1) This Act may be cited as the Housing (Additional Powers) Act, 1919. Short title and
duration.

(2) The provisions of this Act, other than the provisions thereof relating to powers of borrowing for the purpose of the Housing Acts, 1890 to 1919, the Public Authorities and Bodies (Loans) Act, 1916, trustee securities, and the acquisition of land for the purpose of garden cities and town-planning schemes, shall continue in force for two years only from the commencement thereof, and no longer :

Provided that section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), shall, in relation to the provisions of this Act which cease to be in force on the expiration of the period aforesaid, apply as if these provisions had been repealed by another Act passed on the date of the expiration of the said period. 52 & 53 Vict.
c. 63.

SCHEDULE.

Section 7.

PROVISIONS AS TO LOCAL BONDS.

1. Local bonds shall—

- (a) be secured upon all the rates, property and revenues of the local authority :
- (b) bear interest at such rate of interest as the Treasury may from time to time fix :
- (c) be issued in denominations of five, ten, twenty, fifty, and one hundred pounds and multiples of hundred pounds :
- (d) be issued for periods of not less than five years.

54 & 55 Vict.
c. 39.
62 & 63 Vict.
c. 9.
7 Edw. 7. c. 13.

2. Local bonds shall be exempt from stamp duty under the Stamp Act, 1891, and no duty shall be chargeable under section eight of the Finance Act, 1899, as amended by section ten of the Finance Act, 1907, in respect of the issue of any such bonds.

3. The provisions of section one hundred and fifteen of the Stamp Act, 1891 (which relates to composition for stamp duty), shall, with the necessary adaptations, apply in the case of any local authority by whom local bonds are issued as if those bonds were stock or funded debt of the authority within the meaning of that section.

8 & 9 Geo. 5.
c. 40.

4. A local authority shall, in the case of any person who is the registered holder of local bonds issued by that authority of a nominal amount not exceeding in the aggregate one hundred pounds, pay the interest on the bonds held by that person without deduction of income tax, but any such interest shall be accounted for and charged to income tax under the third case of Schedule D. in the First Schedule to the Income Tax Act, 1918, subject, however, to any provision of that Act with respect to exemption or abatement.

5. Local bonds issued by a local authority shall be accepted by that authority at their nominal value in payment of the purchase price of any house erected by or on behalf of any local authority in pursuance of any scheme under the Housing Acts, 1890 to 1919.

6. The Minister may, with the approval of the Treasury, make regulations with respect to the issue (including terms of issue), transfer and redemption of local bonds and the security therefor, and any such regulations may apply, with or without modifications, any provisions of the Local Loans Act, 1875, and the Acts amending that Act, and of any Act relating to securities issued by the London County Council or by any other local or public body.

CHAPTER 100.

An Act to amend the Law with respect to the supply of electricity. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

ELECTRICITY COMMISSIONERS.

Appointment
of Electricity
Commis-
sioners.

1.—(1) For promoting, regulating, and supervising the supply of electricity there shall be established as soon as may be after the passing of this Act, a body to be called the Electricity Commissioners, who shall have such powers and duties as are conferred on them by or under this Act, and, subject thereto, shall act under the general directions of the Board of Trade.

(2) The Commissioners, not exceeding five in number, of whom one shall be chairman, shall be appointed by the Board of Trade: in the case of two of the Commissioners the term of